ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	119th Commission Meeting
DATE:	15 & 16 March, 2023
TIME:	03:15 PM & 10:00 AM
VENUE:	Third Floor Meeting Room

#	AGENDA & DISCUSSIONS	DECISIONS
1	Follow-up of tripartite meeting on the RAA's request to expedite actions on their referrals *In keeping with Section 83 of the ACAB 2011, the tripartite meeting between the ACC, OAG and RAA, held on 9 & 10 March 2023, decided to maintain the status quo in investigating all corruption matters, including the RAA referrals. This was against the proposal of the RAA to directly forward its referrals to the OAG for prosecution in view their concern on prolonged action by the ACC. To this, the ACC had agreed to explore possibilities of expediting the review of the referrals within its existing complaints management system.*	**The Commission decided to adopt the following to expedite actions on the RAA referrals, based on the categorization of priority:** • **For the regular referrals, a team consisting of experienced representative from the DoPS and DoI to conduct a preliminary assessment of the audit findings and accordingly report to the CEC and CM within five working days. This will not only help in enriching information on audit findings but also obtain all evidences, which will later be useful during investigation.** • **However, the 'Priority' referrals of the RAA to be registered and evaluated in the immediate next CEC and CM. Further after evaluation, DoI to frontload those prioritized referrals for assignment and investigation.** • **The referrals which are of very 'High priority' will follow the procedure for 'hot pursuit' or rapid response.** **The Commission reminded DoI that the ACC, in principle, has agreed to complete investigation of qualified referrals within six months.** **To understand the status of the audit referrals at various stages, the Commission directed DoPS to present in the next Commission meeting.**

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2	Report on the security assessment of Regional Offices (Bumthang & Trashigang) – Security Officer *The security assessment of the two Regional Offices, housed in RAA's building in Bumthang and District Court in Trashigang, holistically identified assets as well as vulnerabilities requiring immediate action of the management to strengthen security controls.*	**In view of the security risks in the respective offices, the Commission decided:** • **To discuss with RRCO & RAA in Bumthang to propose respective share of budget for installation of CCTV collectively.** • **To immediately look into deploying security guards in Bumthang on costs sharing basis between the three agencies, as discussed in the past.** • **To send metal detector from the Head Office to Trashigang to augment the security control currently manned by the RBP personnel. To this, the ECB & Judiciary to be requested to look into installation of CCTV.** • **To explore installation of biometric for perimeter fencing of the ACC, along with fire extinguishers, in the both the regionals offices from the budget savings.** **On the similar note, the SS was directed to explore any savings from the current annual budget and install fire extinguisher and emergency bell/alarm in each floor of Phuentsholing and Thimphu offices respectively.**
3	Regular HR update – HRS *Following decisions of the 89th and 90th HRC meeting were apprised to the Commission:* - *RCSC's approval for inclusion of multiple services in the Target Group for the Prioritized Area of Forensic Science for the Australia Awards.* - *MoF's approval to pay additional stipend for the participants attending 24th CPIC in Singapore as one-of-case approval.* - *Acceptance of request for internship of a final year law student, to be attached with the LD.*	

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	- *Internal transfer of Yeshi Dorji to Bumthang Regional Office and Kinzang Choden to DoPS with mutual agreement for interchange.* - *MoF's letter to relieve finance/accounts officials to Cluster Finance Service.* - *Nomination of Kelden Jamtsho and Ugyen Penjor for Leadership Training Program.* - *Nomination of officials from all the Department/Divisions/ROs for the digital skills training.*	**The Commission directed DoPS to ensure proper handing-taking with rigorous job shadowing before the effect date of Yeshi Dorji's transfer.** **Decided to meet and discuss ACC's concerns on clustering with the Acting Secretary of MoF.**
4	Review comments on Rules for Administrative Disciplinary Actions (RADA) – LD *The comments prepared and compiled by the LD was reviewed.*	**The Commission endorsed LD's draft comments on RADA with following additional comments, among others:** - **Include a 'major' offence related to incitement related to race, sex, language, religion as per the Constitution;** - **Classify "abuse of function" as a 'major' offense as the minimum quantum of sentence is misdemeanor;** - **Classify "influence clients and staff for personal gain" as a 'major' offense as the minimum quantum of sentence is misdemeanor or value-based sentencing;** - **Offences in sl. no. viii & ix under section c (corrupt practices) is not corruption practices;** - **Offences in sl. no xiii, xiv, & xv under section c (corrupt practices) to also include 'minor' sanctions to take disciplinary action when there is no criminal prosecution;** - **Offence in sl. no vii under section d (behavioral issue) to be segregated into two different offences, one relating to action and other on the consequence of the wrong, misleading or giving false information. Accordingly, the adverse effect of such information to be classified as a 'major' offense.** ***The copy of the comments submitted to the***

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		RCSC is attached.
5	Present survey questionnaire for the revision of Gift Rules – LD *Besides the draft questionnaire, the meeting discussed on the provisions of the Gift Rules 2017 required to be revisited based on the comments/concerns/opinions/ suggestions received from different stakeholders. Those included bringing clarity on permissibility of gift received as Seolra, as well as those of the family members; reviewing threshold given the inflation rate; bringing clarity on the definition of public servant; integrating CoI in the Gift declaration; and making rules understandable and practical.*	**The Commission directed the LD to revise the questionnaire with clear redefined purpose of the survey.** **It was directed that the survey should target a very meaningful consultation to seek opinions/comments on the existing provisions of the Rules, tests new ideas related to any expected changes in the Rules, and advocate on the Gift Rules and its objective of promoting integrity and corruption prevention.**
6	Draft ICT Plan for 13th FYP – ICT & PPD *This was in response to GovTech's request to submit draft ICT plan for the 13th FYP.*	**The Commission endorsed the draft with following additional inputs:** - **To develop a system to manage gifts;** - **To adopt database for regular evaluation & assessment of anti-corruption and adopt CAPI survey solution;** - **To include integration of data with financial institutions for ADS.**
7	Present ATR on non-compliance cases of AD – ADMD *The status of compliance of actions on late declarants for Schedule I & II and Schedule II non-declarants were reviewed.*	**The Commission decided to send a Final Reminder as follows:** - **Notify the three Schedule II non-declarants to pay the outstanding balance of the partial payment by 31 March, 2023.** - **Notify the Heads of the Agencies (HoAs) of 13 Schedule II non-declarants, who have not yet initiated the payment, to recover the penalty amount within 30 April 2023. The HoAs to be reminded of their responsibility towards a shared purpose of corruption prevention.** - **Notify Schedule I late declarants to pay the penalty by 15 April, 2023. The declarants had not responded to ACC's repeated reminders.** - **Notify the HoAs of Schedule II late declarants to recover penalty by the mid of April and accordingly submit report to**

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		the ACC by 30 April, 2023. **The HoAs and all the individuals concerned to be informed of legal liability if they fail to adhere to the order and extended deadline. The legal actions may escalate to major sanctions including prosecution, record in IVS and referral to the RAA.** **The Commission directed ADMD to make best use of the existing ADA group/forum to communicate, share information/ resources, build network, and camaraderie boosting each other's morals.**
8	Review the decisions of the Commission meeting – PPD *The Commission reviewed the implementation status of decisions of 107 to 117 meetings.*	**The Commission directed the following on specific decisions of the past meetings:** - **HRS to regularly apprise on the staff turnover rate to the Commission;** - **Mandatory trainings in future to include sensitization on e-gp system;** - **ACC to discuss with RBP on the Parliamentary resolutions to establish separate detention center;** - **PPD to study TI CPI's sources of information and analysis in detail in consultation with DAREs;** - **DoPS to lead the review of backlog cases related to land, and initiate review/investigation in early April, 2023;** - **PPD & ICT to review the security and integrity of *eversign* system;** - **SS to install the monitor in third floor meeting room in DoPE's room after being replaced by an interactive board;** - **SS to permanently transfer the stock in Trashigang Regional Office to the Trashigang Dzongkhag Election Office;** - **PPD to revisit the categorization of the Commission's decisions to also take teambuilding and welfare aspects into consideration given the Commission's priority.**
9	Revisit proposal to sign MoU with ICAC, Mauritius – PPD	**The Commission decided to process signing of MoU with ICAC, Mauritius by seeking political clearance from the Cabinet Secretariat.**

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10	Apprise on MTR of APA 2022-2023 – PPD *This is a follow-up of the presentation to management on 20 February, 2023.*	**The Commission endorsed revisions in the APA for FY 2022-2023 based on the Mid-Term Review, specifically on the following:** - **EMD's KPI on '*Documents & seized properties professionally managed'* to include Key Intervention related to safeguarding integrity of valuable items through necessary valuation;** - **Further, EMD's KPI on '*Effective handing taking of seized property and documents ensured'* to include Key Intervention related to stock taking and clearing/forwarding of all the seized properties related to cases forwarded for prosecution to the OAG. This is based on the minutes of the tripartite meeting between the ACC, OAG and RAA, held on 9 & 10 March 2023.** - **DARe's KPI on 'Strategic intelligence and research in vulnerable areas conducted' to be retained by reducing the target to 1.** - **Further, DARe's KPI '*Internal systems/process reviewed and streamlined'* to be retained with revision in the target, reducing to 1.** - **The target for the LD's KPI '*Acts/Rules and Regulation/SoPs/ Guidelines/Manuals reviewed or developed'* to be increased to 6 from 5 in keeping numerous Guideline/SoPs/Manuals in pipeline to be reviewed.** **The Commission directed SS to present financial performance of Annual Budget to the Commission once in every month to see the overall APT performance wholistically.**
11	Any other: *i) Review of judgement on case 29/2017*	**Given the urgency as against Commissioner Jamtsho being out of station and Dasho Chairperson declaring CoI, the Commission directed Commissioner A Karma Rinzin, and the two Directors of DoI and DoPS to review the judgement on case 29/2017.**

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ii) Meeting 6th Pay commission consultation team	**Assigned Director Wangay to lead the team to present the ACC's proposal to the 6th Pay Commission after consulting the staff.**
iii) Enhance Interrogation Room	**Given the challenges faced by the investigators related to limited interrogation rooms, SS was directed to plan refurbishment of two documentation rooms and also other two adjacent rooms into interrogation rooms. The documentation room was directed to be moved to the basement.** **SS was directed to plan and present the proposal to the Commission. The Commission directed that lack of facility should not impede investigations.**
iv) Office maintenance, cleaning and beautification	**The Commission directed SS to immediately plan maintenance of office building by painting the internal walls, cleaning and beautifying the premise with flowers. It was highlighted that the plans should be completed before the end of spring and also to be prepared for the 2023 'Royal Bhutan Flower Exhibition' in Thimphu. Due to shortage of budget/resources, the Commission directed SS to encourage staff volunteers.** **The instruction to fix frames/pictures including vision/mission was advised to be executed after the wall painting and cleaning is completed. To this, SS was directed to take stock of all the photo frames and assess the condition for reusing.**
v) Way forward on illicit enrichment /lifestyle watch	**ADMD was directed to work with PPD and DARe to plan the way forward on operationalizing lifestyle watch or illicit enrichment immediately, including sensitization.**
vi) Update on the request to CPIB *The Commission noted the following:* - *CPIB regretted the ACC's request to attach its officials to the CPIB's Intelligence Unit;* - *CPIB rescheduled the attachment of ACC officials to their Forensic*	**Directed PPD to request CPIB to consider scheduling the attachment of ACC officials to their Forensic Branch in the end of May or mid of June, 2023 given the resources constraints.** **Further, PPD to revise the program for visit by the CPIB officials from 23 – 29 May, 2023 and also check with CPIB on the payment of**

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	Branch after June 2023 due to unforeseen circumstances at their end; - *CPIB proposed to focus on investigative functions only for the proposed fielding of their delegates to ACC Bhutan. To this, the duration to the program to be reduced from three weeks to one week.* - *CPIB to cover the costs related to accommodation in keeping with their policy.* *vii) Quarterly Staff Meeting*	**SDF.** **The Commission directed PPD to schedule the 10th QSM on 14th April and prepare the program after consulting all the staff.**

Commissioner	*-out of station-* **Commissioner**	**Chairperson**

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Document ID	3ef0eb57e580453b88827ff08d928ed3
Fingerprint	1ea43ed829221ef46a939d3cabdb8908
Status	Completed

Document History

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Document Viewed	Document Viewed by A Karma Rinzin (akrinzin@acc.org.bt) IP: 119.2.118.134	Apr 05 2023 05:49AM UTC
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